July 17, 2024

Don Onwiler
Executive Director
National Conference on Weights and Measures
9011 S 83rd Street
Lincoln, NE 68516
don.onwiler@ncwm.com

RE: Uniform Shipping Law Proposal – OTH 24.1

Dear Mr. Onwiler,

I am writing on behalf of LyndenTransport, Inc. regarding the Uniform Shipping Law, OTH 24.1, drafted by the New Hampshire Division of Weights and Measures, which is currently under review by the Laws and Regulations Committee of the National Conference on Weights and Measures (NCWM). Lynden Transport is both a less-than-truckload (LTL) motor carrier and truckload (TL) motor carrier that transports freight throughout the lower 48 States and Alaska. When sorting and consolidating freight at our service centers, Lynden Transport, Inc. inspects, weighs, and measures the tendered freight to ensure that it is accurately described on legally-required bills of lading. Because OTH 24.1 would allow the states in which we operate to replace our forms and procedures with state-mandated forms and procedures, its adoption would substantially disrupt our W&R operations without offering any meaningful benefits to the shipping public.

Over the years, Lynden Transport, Inc. has received many bills of lading from shippers that lack complete descriptions and information about the commodities we were being asked to transport. Often they say, freight all kinds (FAK), generic descriptions, with no real accuracy in the descriptions. Weights and dimensions are not always provided or are rough estimates. In short, shippers didn't and still don't provide the information required by law (49 U.S.C. 80113) or the information required by the bill of lading forms and associated rules, terms and conditions that we and our shippers typically use (National Motor Freight Classification -- NMFC Items 250100-250160). Providing a sub standard level of information doesn't allow us to properly classify the freight or accurately price our transportation services.

Direct contacts with shippers often do not remedy the problem, because they don't have personnel tasked with collecting the required information or tools needed to collect it. Instead, our shippers tend to rely upon us to provide the legally compliant descriptions, weight and dimensions. To do this efficiently and accurately, in 2013, Lynden Transport, Inc. established its W&R program**.** Lynden Transport, Inc. has NTEP-approved forklift scales (45) in our facilities that are tested and calibrated daily to ensure accuracy. We also collect the dimensions of most all of our LTL shipments in order to capture the LTL shipments' density. We employ trained

supervisors who not only check this equipment for accuracy, but have rigorous training that allows our supervisors to look up complete and accurate commodity descriptions when needed. Our processes and technology are integrated with our billing/dispatching systems that document updates and changes made during the process of moving shipments through our system. Our scales are connected wirelessly to our core operating systems, shipment bar codes are read by the forklift and the scale weights update automatically.

The W&R program has many benefits for Lynden Transport, Inc.. It allows us to effectively use available trailer space, insures compliance with weight accuracy, it allows for pricing to be applied to the shipment and it insures proper descriptions of the freight being moved are listed on the shipping documents. Lynden Transport's W&R program aids our business in many positive ways, benefiting shippers, consignees and the carriers involved in moving the shipment, as it creates accuracy in understanding which correclates to more accurate pricing and a safer work environment. There is no evidence whatsoever that we, Lynden Transport, Inc. uses this program as a vehicle to increase profits through fraudulent changes to shipper-provided bills of lading. Rather the program insures accuracy and honesty with regard to the shpments being moved. If a carrier is not honest and forthright in its dealings with customers, that carrier will lose its business and be out of business. We do not believe New Hampshire nor any other State has a widespread problem with corrupt practices tied to carrier W&R activities.

Lynden Transport, Inc. has processes in place for handling invoicing disputes and resolving differences with our customers. We've been in business since 1906 and its largely due to the fact that the shipping public trusts us and knows that we're honest in our dealings. Sure we might make a mistake here or there, and when that happens we correct it, we do what is right and proper. Regarding shipment classification issues, when we are unable to clearly identify the proper commodity code within the NMFC we seek input from the NMFTA's interpretations department as they are the industry specialists**.** In very rare occasions when these processes don't work, shippers always have the option to bring their disputes before the Surface Transportation Board or to court, Lynden Transport has never had a customer have to take either of these actions.

For the reasons listed herein, we believe that NCWM should table OTH 24.1. The law would potentially impose substantial burdens on the interstate operations of many carriers like Lynden Transport, Inc., without any evidence that the proposed mandated forms and procedures would benefit shippers in any way. Thank you for your consideration and time.

Sincerely,

*Steven M. Hartmann*

Steven M. Hartmann
VP, Sales & Marketing
Lynden Transport, Inc

Cc: Gene Robertson, NCWM Chairman
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